

Court No. - 39

Case :- WRIT - C No. - 24745 of 2022

Petitioner :- Prempal Singh

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Sharad Kumar Srivastava, Phool Chandra Yadav

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Heard Sri Sharad Kumar Srivastava, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondents and perused the record.

The petitioner is raising the dispute with regard to the computation of electricity charges pertaining to the connection taken by him.

The remedy before the petitioner is to approach to the Executive Engineer concerned by filing objection invoking the provisions of paragraph 6.5 of Electricity Supply Code, 2005.

For the aforesaid, we dispose of the present writ petition with observation that the petitioner shall file appropriate objection before the Executive Engineer concerned raising all his grievances within a period of two weeks from today along with copy of this order.

In case, such an objection is filed within the time given above, the Executive Engineer concerned shall be under obligation to take an expeditious decision, in accordance with law, dealing with all points of objections, preferably, within a period of four weeks from the date of receipt of the objection.

For a period of two months or till the decision is taken by the Executive Engineer concerned, whichever is earlier, the demand notice dated 06.04.2022 shall be kept in abeyance.

In case of default of filing objection within the time given above, it is open to the respondents to proceed against the petitioner, in accordance with law.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 15.9.2022

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